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ETHICS CASE STUDIES

Arguments/ Phrases/ Flowery Sentences

- Doing X will **'widen trust deficit'** b/n people and govt. As trust is a **'common good'**,'…'
- As X, it is my duty to address issue **holistically** taking interest of **all** stakeholders into consideration
- It leads to **negative behaviour reinforcement**
- By doing X, I'll **not compromise my integrity** which will be a **lifelong asset**. → ✗
- (If have to take tough decision) → I'll do X as it'll help me learn to stand for what I believe ↙
- X may result in **unfair distribution of benefits and burden** leading to…**injustice** ↓≈
- Thus, a **multi-pronged strategy** is required to bring about attitudinal changes among people towards….
- (**accessibility, affordability and anonymity**) provided by internet have put 'illegal content/ porn/ CSM' right at our fingertips /rational ↙
- Today, parents give more **importance to social well being** of children rather than **ethical well being** [give costliest phone coz his friends have it/ teach him to top exam by any means]
- Politics without morality is **a sin** as per Gandhiji. Reforms to decriminalize politics are imperative **for survival of democracy.**
- (If a very competent worker is a criminal/ sex predator) → Being very effective and hard working at the work place **does not** make a person free from any kind of criminal liability.
- As a public servant, it is my **duty** to aware people of their **rights** ↙
- One should take into account **long term harms** which may occur in **pursuit of short term gains**. ✗
- no organization can go through a long distance without **embracing ethical behaviour.**
- Ethics/ morals/ values….a **prime factor** of an organisation's success and sustainability.
- Ethics are as important for public servant as **blood for body**
- a long **legacy** of unethical practices in governance **enhances tolerance level for administrative immorality/ apathy** ↓⬇
- The government must imbibe the spirit **of emotional unity** with citizens.
- **nebulous, incongruous laws**, with confusing definitions will only promote corruption
- violation of **laws of land and mores of society**
- **efficient and effective judiciary** with fast-track justice system= roadblock to **administrative immorality**

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- **slow-moving and rule-tied bureaucracy**, with a concern for **letter** rather than **spirit of law** fails to deliver purpose of law
- behaviour of politicians has a **demonstration effect** on civil servants [Higher officers on lower ones]
- media can act as a **catalyst** to promotion of ethical behaviour among administrators
- encourage ethical conduct and **reward** those **who act morally**
- civil servants must **not** define their role and responsibilities in a **'parochial manner'** (self-centered, group-centred or organisation-centred) but must be **people centred**
- In prehistoric time of India, good governance was conceptualized as **Ram Rajya** → natural law of Justice
- a culture of **peace, respect, dialogue, reciprocal commitment** and reconciliation.
- Means>Ends → **"Not only must Justice be done; it must also be seen to be done."** (Judiciary code)
- Bhagavad-Gita refers to an emotionally intelligent person as a **'Sthithapragna'** (emotionally stable person).
- Development is imp but should **not** be done by **stepping** on environmental ethics ('G' in GDP must not ignore 'green')
- **As a civil servant,**
    - implementation of legislation is my first duty

- Maintenance of **objectivity** and **rule of law** are my professional obligations
- (if koi small hurdle ho - eg: land acquisition, fund syphoning [X]) → write "X **should not be an obstacle for genuine development** of a particular region"
- A few corrupt officials create **domino effect and demonstration** effect for **other** officials who are honest and working with **integrity**
- **Political affiliation of business groups** encourages **abuse** and **violence** against officials.
- **Political power should be**
    - **limited** by institutions and procedures, rule of law, power sharing, devolution, mandates, open and fair competition and a sense of modesty;
    - **accountable** to common good, community and its representatives, setting ground for wider acceptance and commitment, securing smooth change and reducing retribution;
    - **effective and efficient, results-driven**, turning assets into benefits for all
- **Ethical exercise of power** prevents **populism**, **autocracy** and **dictatorial rule** [PAD]
- A civil servant should remain unaffected by changes in the flow **of politics.** (non-partisan)
- we need an **impartial** and **apolitical** bureaucracy
- In developing countries like India, a civil servant needs not only to perform maintenance work but **he also plays an important role in socio-economic development & complex process of social reconstruction** ✗
- Post independence, civil servants have played immense role in **social reconstruction of society**
- In democracy, **democratic reasoning** must be respected
- no organization can go through a long distance without embracing **ethical behaviour**

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- Ethics are as important for public servant as **blood for body**
- actions of Public servants should reflect policies of government of day and standards such as professionalism, openness, and fairness
- **high status** must be accorded to **ethical conduct**
- Increased tolerance level for **administrative immorality** [reality of today's society → people seeing wrong but not raising voice]
- an efficient and effective judiciary with **fast-track justice system** = **roadblock** to immorality in public affairs
- crux of administrative ethics is ethical decision making
- An emotionally intelligent CS should be **adaptable to environmental transformation** and yet must sustain his **ethical norms of conduct**
- A CS should be **universalistic in orientation and liberal in outlook** (UO, LI)
- In prehistoric time of India, good governance was conceptualized as Ram Rajya
- The Nehruvian view maintains that **national interest can only be defined in context of universal values like peace, tolerance and fraternity**.
- ethical and responsible decision-making
- we need a National Strategy for Information Sharing and Safeguarding
- Adherence to **highest standards** of probity, integrity and conduct
- **devotion to duty**
- As a civil servant, taking an immediate and efficient action is my **LEGAL DUTY** [eg- helping poor…]. As a responsible citizen this **legal duty** becomes a **moral duty** also ↙
- Youth are **trustees of growth** and progress of nation
- only check against breach of morality is **social condemnation** or **individual conscience**
- According to Kautilya, National interest must always take **precedence** over all morality.
- X not only has administrative implications, but also **historic significance** and emotional attachments [can write to say why 'this' CoA can't be adopted]
- Mobocracy must not dominate democracy
- **Government institutions are the vehicle of district administration and people's faith is its fuel**. Their faith should be preserved and credibility of institution should be maintained ↗

↙ Use this clue

write → Patience [Nodness/ Humility /temperance is also 1 of 7 heavenly virtues of catholic church → Prudence / courage (Fortitude) (temp.) / Justice = 4 cardinal virtues (Plato)

WHAT CAN YOU WRITE IN INTRODUCTION

When politicians/ seniors pressure you [IAS] to withdraw cases/ release relatives…

- The case presents **difficulty** officials face in performing their duty in context of **pressure** from superiors. It also shows how **powerful people** try to **circumvent law** and violate **doctrine of rule of law.**

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- Body [after saying why superior is wrong]
    - But the structure of 'X department' remains **stable** only because orders from seniors must be **adhered** to. Hence **I must balance my conscience, duty to uphold law on one hand** with **authority of superior** on other hand
- Abiding by the Constitution and as a civil servant, it's my duty to defend the rights of citizen and work for their welfare.

General Intro

- Given situation shows **lack of accountability** + **transparency** and presence of corrupt practices involving public servants and businessmen. This situation has been created due to **not** performing duty at **each level**. Also it is depicting issue of **nexus** between public representative and businessmen.
- Above case **demands** power of **persuasion** of government and its officials
- As X, it is my duty to **maintain good work culture in** organisation.
- This case shows issue of **deep rooted prejudices** in mind of X. His rationality is dominated by prejudices, that is, he is **under veil of ignorance**.
- act of corruption along with violation of law is prevailing in above case. elements of government are involved in act of corruption/ breaking laws… Law makers have become law breakers in this case.
- situation presents difficulty in implementing a socially important scheme when corruption is prevalent and people are less aware.
- case is concerned with a conflict between **environmental values** and **economic development**
- case shows how superstition can create hindrance in development process of nation. It presents a situation where **emotional intelligence**, **persuasion power**, **dedication** and **spirit of service** of civil servant will be checked
- This case brings out practical reality where **economic constraint** brings **limitation** on our **empathetic and compassionate actions.** It is duty of state to serve **every citizen equally** but when resources are limited, government has to **prioritise**
    - flood mein whom to save in what order
    - less funds- how to ID beneficiaries…
    - ***can replace Eco constraint with 'constraints posed by laws' → eg- old lady not eligible in scheme /triage ethied
- Above case shows deep rooted prejudices and discrimination against girl edu/ widows/ manual scavengers….
- Above case is based on **conflict** between economic development and environmental sustainability
- Above is a case of putting **personal interest** over inclusive social development…
- Corruption always hampers equal distribution of resources in society and keeps away **justice** which is **a cardinal virtue of governance.** (Prudence, Courage (Fort.), temperance, Justice)
- Above case highlights strong nexus among elements of government, media etc..
- **(Corruptn/ fund misappropriatn)** → above case highlights fact that out of **total sum** devolved, **only a small fraction** is utilized for public welfare. Leakages and corruption leads to **siphoning off** of most of resources. **Dishonesty** and **lack of integrity** in public officials is a challenge in public administration.
- above case presents an ethical dilemma of…….

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- As a CS and a responsible citizen, it is my legal as well as **moral responsibility** to…..
- Above case presents **conflict** between **means and end**
- case presents **challenge** an honest officer faces in corrupt system.
- As X, case presents a **dilemma** for me to choose between company's interest and duty towards SOCIETY

- case presents challenge of balancing personal and professional life **without compromising on ethical principles**
- Above case is concerned with maintaining law and order situation and reducing public anger. On both fronts, there is a **need of high emotional intelligence**
- (If fund misappropriation) → Government is **trustee** of money of people. Fiduciary responsibility of effective utilization of fund has to be completed done with utmost **honesty**

Answer : As a Superintendent of Police it's my **duty** to maintain the peaceful environment of the district. Following are ethical issues involved -

- **Rights**: violation of **right** to get services of government without **corruption**
- **Justice**: unjust behaviour of supporters of station officer and MLA and burden is shifted to the section of businessmen who left the district.
- **Value**: integrity, probity in profession, accountability of MLA of ruling party, emotional intelligence of the culprit.
- Common good – **trust** between police department and citizens, **tolerant** and peaceful society.
- Integrity versus well-being of SP

See how started

How to conclude

- Though this step will require **high emotional intelligence** on part of me and my team, I, as a leader, will try to motivate my subordinates to opt this strategy. [**Acct 3(2)** of CS conduct rules '66]
- (Corporate Ethics) → There is a need of **balance** between profit and trust of people in corporate world. We must understand that profit of company increases with increase in trust of people
- third option seems **balanced**. I would go with this as **it ensures continuation of desired end with ethical means.**

honoring the social contract of govt to citizens → DPSP/FDs

What can you write in 'ETHICAL ISSUES' involved

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→ do bring which articles are at stake in. (✗)

When?	Ethical issues involved
If poor are gonna be affected/ cheated/ discriminated by actn	• Compromise of **Social justice** [enshrined in **preamble**] • widening of **trust deficit** ↙ (soc. good) • **credibility** of Govt [a common good]
Any case	can classify EIssues as:

1. **Common good**
    1. **trust** b/n people & govt
    2. **accessible** health care system
    3. **social capital**
    4. healthy **demographic dividend**
    5. **unpolluted** environ
    6. crime in society
    7. social **unity/ cohesion** ǁ disharmony
2. **Rights**
    1. Rt to **self determinatn**…..
3. **Virtues**
    1. commitment, dedication → of pub servants
    2. empathy → of docs
4. **Justice**

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1. see if case involves 'possible' injustice to any gp

If you did something in 'X' capacity

- Responsibility towards family/ society/ nation
- Possible **inner dissonance**
- virtue of **objectivity/impartiality/empathy**….
- Emotional Intelligence on my part and my courage to face such situation
- Leadership quality on my part
- my virtues like courage, fortitude and perseverance are at stake

Cheating/ fraud/ corruption

- gives **unfair adv** to cheater → **injustice** ↙
- **unfair distributn of benefits & burden** → **tempts** others to indulge in such [cheating/ corruptn] behaviour → especially today when marks/ money/ status are **valued** by society (Social well being > Ethical WB)
- **Dilution** of Quality of dedication, perseverance etc as C/F/C kills motivatn to work hard
- **Erosion of values structure** of society by setting a **wrong precedent**
- **Societal trust** [Common good]

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- Loss of social capital and value structure of society
- **Fiduciary responsibility** of government to effectively use funds at disposal → (If govt's spending concerned)
- Socialn of losses & Privatn of profits.

If public officials/ politicians are unethical/ break laws/corrupt

- reduction in **respect for laws** and propensity to follow them (Law **breakers** become law breakers → Breeds contempt for laws
- Poor value structure as they are **role models** for many
- Politicians are **custodians of economy**. Safety and effective use of public funds gets jeopardized
- **Dilution of Motivation** of younger generation to join **politics/CS..**
- Frustration and dissonance in public which may lead to **unrest, disorder and anarchy**
- **Maligning of nation's image** in internatnal fora. Can also lead to **alienation of diaspora**
- threat to good governance
- (**Rights**: violation of right of people to get services of government **without** corruption
- Theft of government services is **unethical** and **against law**. [if politician siphoning pub funds]
- Non corrupt society is publice good
- Lack of integrity on part of public officials
- violating right to equality of taxpayers\
- Corruption and poor governance
- **shifting of burden** on other people [taxpayers/ poor….]
- **Breach of trust by** elected representative and public servants vis-a-vis electorate
- trust and confidence in **integrity** of civil services/ elected representatives
- **Demonstration effect** and **bandwagon effect** on society
- **Dereliction of duty**
- **Abdication of responsibility**
- **Obstruction of justice**
- **Abuse of authority**
- **Politico business Nexus**
- Injustice to poor and marginalized section of society
- Corruption, dishonesty, greed of persons involved in administration
- Transparent and **accountable** administration → **common good**
- Behavior and attitude of bureaucrats, politicians and businessmen
- **Violn of SOCIAL CONTRACT**

- **personal affiliations** between minister and civil servant leading to **politicisation of civil services**
- **virtue of Forbearance** (Without which a civil servant can resort to **abuse of power** or malpractices)
- (If Politico-bureaucratic nexus) → standards of **professionalism, responsiveness** and **impartiality** by civil servants in **serving political executive**

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- **Right of people for transparent and corruption free administration**

See keywords wala note

Private companies

- Responsibility and accountability towards **stakeholders** ↙
- Transparency and **disclosure**
- **Statutory and legal obedience**
- **Quality of products** and services
- **Business ethics** of corporate
- Responsibility towards people and **society** in general
- Company's **profit** vs my ethical values like **integrity** and **honesty**
- My loyalty to company vs morality
- **Credibility of company** in market at stake
- **Long term harm for short term gain.** (in pursuit of)
- Injustice to people as burden will **fall upon them**. [if unethical practice done]
- Productivity/ efficiency of company **(Public good)** → write for PSUs too

Violation of constitution/ laws [Eg- poor voting ratio/ discriminatn of SC, ST/ violatn of FR]

- **Erosion of people's faith**/ trust in democracy/ constitution /constitutional institutions
- Adherence to Constitutional and democratic **ethos**
- Violation of **spirit of constitutionalism**
- (**Credibility** of government's legislation/ judiciary's decision
- Gross **perversion of constitution** /justice

Poor harassed due to superstitions/ prejudices [eg- Witch killing]

- Poor facing **burden of prejudices**
- Right to **dignified life** of X
- **Stereotypes** and prejudice in Indian society.
- **respect** for human rights and democratic values

Majority/ rich harassing minority/ poor

- **empathy** toward economically weaker section;
- responsibility of stronger section of society toward weaker
- **Social inclusiveness**

Abortion

- Right to live a **dignified life** for children born with disorders
- Right to **life** of fetus → **informed consent** | Rt self determ'n

Biopiracy [big comp stole indigenous inventn]

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- Natural resources as **a common good**
- Rights of **local** people
- unequal distribution of **benefits** and **burdens**
- **informed consent**

Euthanasia

- **sanctity of life**
- **duty** of doctors
- right to **self-determination** of patients

- adherence to **Hippocratic Oath, Declaration of Geneva**
- **informed consent**

Surrogacy

- exploitation, **commoditization**, and/or **coercion** of women
- **Inequality** (wealth and power **differentials** between intended parents and surrogates)
- **contractual arrangement** of woman's body
- **motherhood** [genetic vs gestational vs social]
- **right to know** identity of mother by Child born

Military ethics/ ethics in war

- laws of war
- choice of weaponry + **collateral effects** such weaponry may have
- standards for handling military prisoners [POW]
- differentiatn b/n CIVILIANS & MILITANTS ↙

General EIs →

- Write for **minutest** stakeholder
    - Eg- If tribals might be displaced via CoA → write in EIssues →
        - Right of **tribals** – right to **dignity, livelihood, reside** in any part of country,
- **Efficiency** and **work culture** of organization
- Respect to decision of judiciary
- Injustice to people as unequal distribution of benefits and burdens takes place
- **Common good** of **trust** between government and people
- Emotional intelligence of X
- Empathy and compassion towards Y
- Respect for rules, laws and authority
- **Courage and dedication** in performing my duty
- Rule of law and equality before law
- **De-motivation** to lower officials [if seniors are corrupt] → DOMINO + demonsth
- Image and reputation of nation/ police dept….

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- **Work culture** of department
- motivation to work with honesty and impartiality [if seniors **forces** you to take down FIR vs politician]
- misuse of public authority for **personal gains**
- Status and reputation of college/ police dept… ,which is a **common good**
- Injustice with poor people **on whom unnecessary burden has shifted**
- **Breach of trust** of poor people → which is a common good
- Violation of right to X
- Lack of Integrity and Probity in public services
- Right of needy and poor people
- **Persuasion** and **leadership qualities**
- Behavioral and attitudinal **change**
- Trust and confidence in government
- Injustice to and loss of dignity of poors/ oppressed
- **healthy** Work culture → which is a common good.
- Lack of **empathy** and **compassion** by ___
- Unethical practices among educated people
- Right to **dignified life** of X
- **Politicisation of bureaucracy** ↙
- **loss of public confidence in bureaucracy** [if I dont act]
- **impartiality/ non partisanship** of bureaucracy
- efficiency of govt
- Right to affordable health care
- Social inclusiveness;
- collaborative and networked leadership.

- **Commercialization** of health sector/ education…..
- Right to clean environment of **citizens** → **common good** [if pollution happening]
- **Golden rule** of ethics: do to others what you **expect** others to do to you.
- **National cohesion**, fraternity among different communities
- Duty of state to provide……
- **My virtues like leadership quality, persuasion power, probity and courage to do my duty**
- Politization of business
- Right of people for **clean fuel** and **environment**
- (**Empathy** for vulnerable and weaker sections of society
- **Adherence to highest standards** of probity, integrity and conduct (PIC)
- Commitment to citizens' concerns and public good
- **erosion** of **credibility of judiciary**
- optimum utilization of demographic dividend
- **possible crisis of conscience**
- shifting of burden on X leading to **injustice** with them
- (sand mining/ pollution/ emissions/ biodiversity…) threat to X → **Common** good
- Faith/ Trust of people in government institution is at stake → which is a common good
- Right of people to be **informed** | **informed consent**

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- Injustice with other employees as they have a stake too (If you [boss] unilaterally takes a decision)
- Right of people for transparent and corruption free administration
- Unethical practice of stone pelting/ defacing pub property against democratic value of **silent protest**
- Right to Health → is against national interest and may increase **disease burden**
- Duty of state to provide livelihood opportunities/healthcare/educatn/ clean environment **(common good)**
- My value of **fortitude and prudence** are at stake
- Shifting of burden to C [when A and B are fighting]
- India's image as a **tolerant country** at international level
- Lack of integrity on part of officials leading to indulgence in **corrupt practices**
- Credibilty of govt and faith of people in govt is at stake
- **Deliverance of justice to last mile**
- Threat to **public faith** in government's development projects → common good
- Credibility and trust of people in government

Nexus between contractors, local politicians and officials

- Integrity, business ethics and **political morality** are at stake
- Rights of people to have a proper infrastructure → is a **common good, duty of state and right of citizen**
- **Wastage of taxpayer's money due to sub-optimal utilization of resources**
- **Injustice** with people → poor infra **despite paying taxes**
- unequal sharing of B&B
- **Honesty vs profit of contractors**
- disloyalty with public institution
- breach of public trust

Education deprivation to poor [health/ other services pe modify]

- Right to **education** of all
- Right to **dignified life** (A21)
- **Duty of state** to provide free education to children (DPSP)
- Education as a **common good**
- shifting of **burden** of illiteracy on poor
- **unfair distributn** of benefits & burden

If 2/3/4 people fought over/ abused/emotnal outburst material good/ trivial matter

- Virtue of **temperance and self-restraint** as advocated by Plato and Aristotle.
- Lack of values like humility and mutual understanding & **inclusiveness**
- **Materialism** in our society [Goods>people]
- disruption of **social capital** like brotherhood, harmonious society
- Domination of **vices** like anger and hate
- normalisation of 'using **muscle power'** via **demonstration effect**
- Lack of **persuasion or convincing power** of Society [if couldn't stop from fighting]

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- egoism
- **intellectual pretentiousness**
- lack of emotnal intelligence

Is kisi ko forgive karne ka ho to

- Obama's hug with a Hiroshima survivor
- Canada @Komagata Maru
- Values of **Brotherhood**, tolerance, forgiveness, humility, empathy , compassion
- Sense of **closure** to end dissatisfaction and dissonance among parties
- Relieving oneself from being **prisoner of past** ✗★✗★
- Honesty in accepting one's mistake
- Respect for human life and dignity
- precendence
- reconciliatn leading to **social capital**
- **intellectual humility** ✗

Corruptn/ fund misappropriatn/ siphoning off of money for schemes

- **Unfair distribution** of resources leading to **injustice** and **shifting burden on genuine beneficiaries**
- **unfair distributn of B&B**
- Work culture
- Integrity and probity at work
- Right of beneficiaries
- **legitimate use of tax payers money**
- **politico- bureaucratic nexus**
- **credibility of scheme**

Gender based discriminatn

- **Gender equality** in modern democracy
- Aspirations of **women** to come at par with men.

Religious matter [Eg- Sabrimala]

- Right to freely **PPP religion [25]** given by constitution
- Common good of **peace and harmony**
- sustenance of local economy from famous temples.

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You can divide Ethical issues into

- **personal issues** → Reversal of servant (govt) & master (people) relationship in a govt setup
- **professional issues**…

RANDOM ETHICAL DILEMMAS

Internal compulsion

- **Inner conscience** vs **external authority**
- Internal compulsions vs external regulations

- Following **Rule of law** vs **order of superior**
- company's **profitability and efficiency vs justice** to harrassed
- Organisation's benefit/ profit vs **work culture** [allowing shit person coz he's good?]
- **economic values vs environmental ethics**
- **Short term profit vs greater good**
- making **profit vs business morality**
- **Personal interest** vs **sustainable environment**
- Duty as a **public servant** vs my **personal well-being**
- truth vs loyalty
- individual vs community
- **(justice vs mercy)**
- **short term vs long term** (environmental concerns)
- **Economic development vs environmental values**
- **impartial treatment vs social equality** (preferential tmt) / (EBL or EPOL)
- respecting sovereignty of other nations vs **right to intervene** in other nations affairs **to protect vulnerable sections**
- **Monetary interest vs emotional attachments**
- (whether my actions are a) **necessity vs discretion** ✗ ✗
- **My integrity vs my personal and social well being**
- (Constructn comp) → **professional ethics vs using inferior materials/ reducing safety factor**
- **Compassion vs (prob)?:**

Why a problem must be happening

- **Inadequate dissemination** of information
- Lack of motivation of public servants/ …
- Absence of any deterrence ↙

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- **Ethical egoism vs altruism**
- My vs Pub's interest
- Public vs Political servant
- Legal vs Ethical
- Conduct rules vs self conscience

What can you write in 'YOUR COURSE OF ACTION'

- start with **least stringent**
    - X must be given **strict warning** to stop Y and must **be informed of likely punishments under law**
    - First I would make them calm and will try **to reinforce their faith in law and order** and me)
- **General CoA**
    - I'll try to **take all stakeholders on board** for **a sustainable solution.** ↙
    - **Awareness campaign and knowledge disseminatn** (AC, KD)
    - Request state govt to ….
    - Organise **awareness camps** to…
    - NGOs can be roped in to… ↙
    - Strict enforcement of law and **use of media** to highlight issue
    - Workshops and meeting must be organised in schools to bring **cognitive change** in children.
    - **persuasive techniques** and **role modeling** (PTRM)
    - Award and recognition to villages with best ___. will bring **collective responsibility** in public
    - Try to bring **ICT** in your CoA → to bring **transparency**
    - I'll try to make people **aware** about high **correlation** between 'lack of exercise of franchise' & corruption/ criminalization of politics
    - Media shall be **encouraged** to highlight….
    - X must be **prohibited** through strict measures
    - Police **patrolling** in area will be intensified in order to check X. Extra police check posts can be setup on all major entry points of…..
    - **persuasion** and **influence techniques** can be used (IT)

- I will ask for a **written** order from superior. **(3(3)** of conduct rules '68')
- a **case** should be launched against him for corrupt practices and **transparent investigation** should be ordered. This will **deter** others from involving in **exploitative** and **corrupt practices**.

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- There is a need of **social audit** which will be done with people's participation. Also along with SA, I will try to encourage people to participate in preparing **Citizen Charter** ↙
- I'll **lead by examples** and 1st ___
- as a part of persuasion I will **urge people** to follow **Gandhi's Talisman**
- Celebrities and public figures should be brought in to campaign for ___
- **certificate of appreciation** to each X will be given
- Illustration of successful stories must be **popularized**
- Ranking of districts and states can be done.
- I'll try to **make him realize (reforming shit co-worker)**
    - that **organisation's success is fruit of collective efforts** and not of an **individual effort**.
    - abt Gandhiji's thought that **"Service without humility is selfishness and egoism"** & is a sin
- round clock **patrolling** with help police officers should be ordered
- Strong ethical management and management of ethics through **training** and incentives
- Persuading X to Y (complete target) by **award and recognition** for compliance & strict action + fine in case of **voluntary non-compliance** (VNC)
- Strong **grievance redressal** mechanism ↙
- Frequent and surprise **inspections**
- Information dissemination – taking help of ……..
- **Socratic method of persuasion**
- **(if you get tip-off of violence/ attack…)** → Plan A and B will be prepared for **both** situations- credible and non-credible information
- Summoning and warning officials involved
- Proper investigation will be ordered and culprits will be punished which will create **a deterrence**
- **To catch someone red-handed/ corruption…**
    - Firstly, I'll **take my seniors** into confidence before directly confronting issue
    - I will gather **all proofs** against X and make a **strategy** with advice of seniors
    - With permission of seniors, **I will take letter of investigation/ search warrant** from higher authority. This means **police force/ CRPF will accompany me** in this operatn. This would ensure maintenance of law and order + **(my safety)** too. Also for proof, **one person from media** will be taken here. A case is not secuirty.
    - **legal process** should be followed (**avoid Presumption of guilt**)
- In given situation, first step should be maintenance of law and order + **restaratn of discipline** (valid in most cases)
- **Corruption in providing govt services**
    - **survey of district** should be done to get exact situation of issue
    - **Regular patrolling** should be done if there is any **leakage** in supply chain + use of ICT (to ↑ transpar'y)
    - For preventing loopholes, **a separate order should be issued against any kind of corrupt practices**
    - For each ward, **People's representative** should be made **accountable** for any kind of dissatisfaction in that area regarding service
    - people's participation is necessary. So **Social Audit** should be set in practice

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    - For long term, **Citizen Charter** should be prepared + **community policing**
    - Officials found of involved in corrupt practices should be **suspended** to prevent **domino effect**
    - Officials should be sent to field for **personal experience** of plight of people.
    - **Special Complaint mechanism** with help line number should be established
- **If poor does not meet criteria/ needs help [similar to reservatn]**
    - I will go with concept of **unequal treatment in unequal circumstances** and providing extra help to him without disturbing objectivity. (w/o setting a precedent)
- **Rehabilitate drug addict youth**
    - **nexus** between drug traffickers and politicians should be broken down.
        - With proper investigation and **proofs**, this should be disclosed publicly to create **deterrance** in supply of drugs
    - **strong law** should be made against drugs trafficking
    - Awareness campaigns like **"Say No To Drugs"** should be run in schools

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- addicted youths should be **counseled** properly
- **rehabilitation centers** should be established with help of **NGOs.**
- Training of family members coz they can make a **real change**
- societal attitude towards youth **after** their rehabilitation should be **positive, encouraging**, so that they don't **relapse**
- Stories of role models like **Michel Phelps** who was addicted to alcohol
- they should be made aware of **Cost Benefit analysis** → what they gain [nothing] vs lose [money, healthy life, relatns…] → **PERSUASION** [don't try to defeat them, win them over]
- youth should be exposed with **fitness centers and Yoga campaigns**
- **Faulty schemes/ funds misappropriated**
    - **E-transfer** of money will be done for **every** beneficiary
    - **Biometric** system for withdrawn of money will be set up
    - Use of Aadhar must be made **mandatory**
    - **Bi-monthly/ regular audit** will be done and **any discrepancies** found will be addressed in a **time-bound manner**
    - **digitalization of system** should be done for preventing siphoning of money and other corrupt practices. This will also in line with Digital India project of Government.
- **If poor kept out of governance/ rights violated**
    - Making aware to poor and marginalized people about their **rights**
    - I'll ask people to use **tools like RTI** ↙ & Social Audit
    - Providing training to poor regarding use of social audit and participation in election process
- **Corrupt politician**
    - He must be summoned/ arrested for **violating code of conduct** of public representative and oath taken by him while assuming this post
- **If majority are oppressing poor/ minority…**
    - with help of **Gandhi's Talisman** I will **try to make them realize** importance of good behaviour with poor

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    - I'll tell them abt SC/ST act and how poor can accuse them of misbehavior and exploitation
- **Is female specific issue** → **menstrual** health awareness/ **contraceptive** use/ **family planning** [Rem- this angle will be peripheral in many Cases as 'high population' diya hota hai in many cases. Addressing that aspect = **Brownie pts**]
    - **female officials/ ASHA workers** should **spread** message to females
    - Easy accessibility and affordability [of condoms/ contraceptives in] **anganwadi centres** etc
- **If customers cheated by shop**
    - standard procedures for all retailers should be **issued** ↙
    - (legislation should be enacted) explicitly mentioning 'customer fraud' as a **punishable offence @CPAct**)
    - Regular inspection should be carried out by **independent officers** with **requisite preparations**
    - High technology and robust sensors should be installed at outlets
    - **People's Charter** should be issued at every outlet so it will help in spreading awareness of people
    - Help line number and **complaint mechanism** should be set up
    - **Empower** people to report frauds → make them **inspectors** → **optimum utilization of resource**
- **Is rural/ poor people don't trust officials/ skeptic of CoA)**
    - Street plays, local art form, advertisements etc can be used as **persuasion tool** for bring about **attitudinal change**
    - Local authorities like **ASHA workers, SHG's, NGO's, gram panchayat, community leaders** must be **involved** and brought to forefront
    - Success stories of similar villages ….
    - **Gram sabha meetings** can be called to generate **awareness** and persuading people to…
    - a **survey report** will be made **public** for awareness
- **If team is hesitant/ has low motivation/ thinks your CoA will fail**
    - **Internal meetings** and **training** has to be conducted.
    - **Data and case studies** must be **presented** to team to convince them of problem of…
    - team must be **reminded** of civil service values of public service and dedication and organisational values
    - I will begin campaign myself to **motivate** team
    - Rewards and incentives based on performance can be introduced.
- **If religion ka issue ho [like demolish a temple to make way for road]/ possibility of religious tension**
    - **Comprehensive persuasion targeting CAB** components of attitude.

- **Progressive religious leaders** with liberal interpretation of religion must be encouraged to talk to people
- I'll not let my own emotions get better of me and will show **FORBEARANCE & TEMPERANCE/** can't make controversial statements in emotions. [as rel groups,

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politicians, media all will pressure you to act fast. But law will take its course, can't hurry it!]

- **Always see if you can break down your CoA into….. more better.**
    - How I'll **motivate** my co-workers/ subordinates…
    - How I'll persuade X
    - How I'll do Y……
- **Try to find reasons of problem [why people accting unethically? why so much corruptn? why poor voting turnout?]. Attack & solve individual parts in CoA** ↙
    - Eg- poor voting coz → threat of extremists, migration to other areas, poor road connectivity, illiteracy, lack of electoral awareness etc.
- **Write unique/ innovative CoA**
    - **Random 3rd party auditing** must be done regularly
    - employees must be **reminded** of Cit charter, CoC/ E of their organisatn
    - Govt channels which provide info on X can be broadcasted
    - **Ethical training** of X [shopkeepers/ corrupt public employees] can be arranged to inculcate spirit of pub service
    - Social audit by village institutions like ASHA workers, SHG's, NGO's etc. **(must be done.**
        - If issue relates women/ children, then write → **Local women** can be made a **part** of Social audit
    - A **reward/ incentive** scheme can be launched for best X

LONG TERM SOLUTIONS [not explicitly asked in Questn]

- After writing your **CoA** [Eg- helping old lady/ manual scavenging] → write as a **long term solh** → I would also **request respective agencies** and **social workers** to find out extent of X and possible solns
- Values like dignity, truthfulness, self-respect, honor, honesty must be inculcated in **students** from very beginning (if corruptn 1/ substance abuse in children….)
- Students must be encouraged to **acquire knowledge, innovate** & **avoid destinatn fever**
- exam pattern should be **modified** to inculcate innovation and creativity among students
- **a separate regulatory body** should be set up by enacting a **law** for regulation of X [pornography/ illegal encroachemnt……]
- **Social security** for poor/ criminals
- proper schooling for poor kids
- **rehabilitating** victims of subs abuse **+ integratn into mainstream**
- integrating concerns of poor/ women/ diff abled… in urban planning/ developmental schemes…
- **Citizen Charter should be designed in such a way that emphasis on duties of people rather than rights**
- **Social Audit** should be done on **regular basis** which will **save social capital**. ✗
    - Reasons behind such behaviour of X should be studied and resolved

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    - I will ask to officials of X (Electricity Board) to prepare a **report** of Y (broken wirings). Based on that report, **proposal should be sent to electricity department of state.**
    - use of **solar power** should be promoted → affordable + in line with **International Solar Mission**.
    - **Reforming police, judiciary and legislature** as per needs of modern society
    - Developing and enforcing a **comprehensive code of ethics** for **all** public executives
    - A **Committee** with participation from various stakeholders should be **constituted** for X and **FUTURE** work should be done on **its recommendation for long-term benefits.**
    - **Regular inspection** should be carried out by **independent officers** with **requisite preparations**
    - **External audit system** on regular basis
    - In long term, people participation shall be ensured through methods like **social audit.**
    - attitudinal and behavioral changes
    - Liberal values and value of tolerance should be taught in schools and colleges
    - **IF CORRUPT CO-WORKERS/ EMPLOYEES**
        - I will enquire into overall work culture of X. **Organisational values** must be inculcated in employees through **ethical training**

- I will request Personnel Department for conducting **Integrity Survey** in organization. And according to survey, **Integrity Recognition Certificate** should be provided
- Also, in long run, I will request organization to **add separate column for integrity** in **Annual Confidential Report** of organization
- Also there should be **rational rewards/ incentive system** for employees which will increase their efficiency, dedication, motivation and loyalty towards organization and **punishment** system which will act as a tool for checks and balances
- Finally there should be **separate phone numbers for complaints against staff members** for e.g. IMF **Integrity Hotline**
- Need to include professional values in company's work culture. Employees should be trained with values like **loyalty, professional ethics, commitment and dedication** towards organization

General Steps to take [Fit in CoActions wherever applicable]

- Reforming police, judiciary and legislature as per needs of **modern society.**
- Strong ethical management and management of ethics through training and incentives.
- Strong ethical management and management of ethics through training and incentives.
- Creating partnerships and collaborations with private sector and non-governmental organizations for service delivery; NGOs
- Building **social capital** by strengthening **civil society**;

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- Developing and enforcing a **comprehensive code of ethics** for **all** public executives
- Zero tolerance against corruption | ZEBRA

most are outta a bureaucrats powers

Course of Action if Natural Calamity in some time [eg- cyclone, flood warning…]

- The first step should be the understanding the potential risk of crisis for that area. This can be known through the **Vulnerability Atlas** prepared for each state.
- Next and important is to disseminate information about the disaster but with moderate language which should not spread the fear in the public. Resources like NGOs, volunteers and local people participation will be carried out.
- Such disaster needs multi-disciplinary task and requires inputs from different specialized organizations for reducing the effect of disaster within such less time. So the cooperation between agencies like IMD, CRPF, Indian Army and local-self-government is important.
- Under DM Act 2005, District collector has the authority to ask for the team of Indian Army for reduction of disaster risk. So this should be done as a first priority. And their deployment with the local participation should be done.
- The evacuation of the residents along the river banks and hilly area should be done in mean time. The rehabilitation camps should be established and displacement of people should be carried out. This will reduce any loss of life.
- Animals can be displaced as much as we can in this time. The NGOs which works for animals should be contacted and asked for cooperation.
- With the help of head of Jails, prisoners should be taken to the nearby jails for time being. This will save their life.
- Natural calamaties are sudden event and do not give previous information. So the disaster mitigation plans should be prepared for the future risks. With the human and animal life, plans should also be prepared for the environmental damages like soil erosion.

Dealing with a Mob + Attitude + momentum + course

- **Warning** to the mob should be given for calling off their violent protest. If the protest is silent then there should **not be a single attack on mob**
- All methods like **tear gas, pepper spray, water cannon**, etc. should be **exhausted** before going for firing.
- **Stone pelting** should be prevented by police force by using helmets and riots shield so their life should not be at stake.
- And finally if any attack with weapons from the mob should be dealt with **the firing**. Thus the **firing** should be a **last resort** of handling such situation.
- Further, police should adopt the **preventive measures** rather than **curative**. Any possibility of the gathering mob should be prevented with immediate measures.

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If police actn inadvertedly killed a man Eg- civilian in JK

His body should be **delivered to his family with respect**. And a **handsome compensation** should be provided on **immediate basis**. This will be some **short term relief** for family. Further, **suitable job** should be provided to the family members it they are adult under various government schemes or according to their potential. Also if there are members who are pursuing education, their **education expenditure** should be bear by government until they get **self-dependent** under the schemes like Sukanya Samriddhi Yojana and Education for All.

It is not equal to the **loss** which they are facing but may give them some **leverage** to **live a dignified life**.

If you have to close an industry coz pollution/ rules flouted…. / But provides huge employment to locals

- If **closure** necessary, **salary of that month** will be **ensured** for workers → to give them **time** to find other job if they want and pacify their anger
- workers will be registered under government's employment schemes like **MGNREGA** → short term relief
- In meantime, **I will talk to owner** of factory to find optimum utilization of factory's infrastructure for environment friendly business.
    - will give job opportunities
- if owner has some idea of utilizing young people for cleaner business, it will be considered
- **I would implement MGNREGA in local area for cleaning of environment which is polluted by toxic from this factory.**
    - This will provide **both short term livelihood** to some and **cleaner environment** to all.
- Younger population would be encouraged to take benefits of government schemes like **Start-Up and Entrepreneurship.**
    - This will make them self-sufficient and creator of employment rather than job seeker.

Justifying your CoA (possible but not chosen mein bhi can write) [De/merits]

- **Merits (I'll choose to do X as…..)**
    - I will be in line with **directives of court of law** and seniors
    - **Strong precedent** will be set. It will deter future…..
    - It'll give me time to contact NGO/ …..
    - **If I don't confront Mr X now,**

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        - his actns [cheat/ corruptn etc] will be **detrimental to economy** → honest will leave & inefficient will join
        - habit will **continue later** in life and results in **corruption and administrative inefficiency**
        - his actns become **demonstrative** for his subordinates and open ways for **further** corruption.
    - If I don't confront 'women harasser' in company [even if very competent], my inaction will
        - **de-motivate** other women employees thus **reducing their efficiency/** may also **leave organisation** thus losing **competent work force**
        - set a **bad example** in society and will **reinforce stereotype** that it is not good for women to work
        - **hurt dignity of victim** and will **take away her right to work** ↙
            - **Justice delayed is justice denied.** Victim will keep **suffering emotionally** and psychologically

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- / may lead to more such incidents

- my honesty, integrity and dedication to services are at stake. Handling such pressure **is part of my duty** and I must deal with it effectively. Not doing X will be against established law & I won't be able to answer my conscience

- (standing for truth/ filing FIR vs minister/ senior…) →

    - **there cannot be selective imposition of law**, depending upon **stature** of person. Law should be imposed equally against everyone.
    - Doing this will help in motivating my juniors to work with full dedication
- Strict action against **Mr. A** [woman harasser but competent] will increase **trust, openness & motivation** of all employees leading to increased work efficiency

    - It is **possible** that I'll get an **even better** employee as replacement of Mr. A.
- Individual employees are **not bigger** than company. For **long term** interest of company individuals must **align** themselves with **organisational value**. (if company is shitty in personal life/ harassees women…)

- I can't succumb to Y as it **is against my integrity** and if any wrong happens it will **create crisis of conscience**

- by acting strictly, I'll will **prevent domino and demonstrative effect** [DDE] in organization which will be a long term greater good

- Taking all stakeholders **on board** is my duty and it shows my **temperance.** ↙

- (supporting argument hai, not main) Kant has said that **altruism is rational** as **it is irrational not to help others knowing that one day, you may also need their**

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help.

- as a civil servant, it is expected of me to create a **win-win situation** for all stakeholders

- this will avoid any **actual/ perceived CoInterest**

- it will allow the state to fulfil its social contract by helping those in need.

- **Demerits (I'll NOT choose to do Y as…..)**

    - may lead to **unfair distribution** of benefits and burdens.
    - may snowball into bigger crisis. Eg
        - **may fuel religious tension**
        - **may cause poor/ tribals to take up crime**
    - may cause X which'll lead to Y [Y= threat to **common good**]
        - Eg- My CoA may lead to health issues for poor [Eg- if I don't stop polluting industry] → which'll ↑ burden on health infra [common good]
    - may **tarnish government** and **my own image** in long run [Eg- abhi praise hoga but eventually everyone'll know]
    - may **erode social capital**
    - there will be **no surety of** ….[intended benefit]
    - If I allow Mr X to continue [with indecent advances/ corruptn…], it'll **discourage future women** employees to join/ coworkers to act honestly → will **hamper organisatn's image** in long run
    - Simply doing 'X' [Eg- punishing Mr A for doing something wrong] will **not** stop him from doing that in future as such actns are a **result of deep seated thoughts** and perceptions which needs **holistic soln**
    - there is a possibility that **I may not be aware of complete details of** …
    - Terrorists are threat to **nation** and its people **(common good)** → [don't show soft corner to terrorist in **any** case]
    - it will lead to **injustice** to people as **unfair distribution of benefits and burdens** will take place
    - Credibility and image of 'X department' may **get tarnished** when things will come in open
    - Work culture would be **destroyed** and other officials will be **encouraged** to misuse their office.
    - A **wrong precedent** will be set
    - it would set **a trend, which would go against my service rules** [Wont favour politicians relatives etc]
    - it'll **merely shift burden to X** ↙
    - **I will be guilty in my own court of conscience**
    - my **inaction** [Y= keeping quiet]
        - will only **shift burden to X**
        - will be against **Kant categorical imperative** which says that running away from duty is cowardness
        - will create a **domino effect** which may cause heavy revenue loss to govt [electricity theft by politician's buddies]

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        - **reinforces prevailing patriarchal attitude**/ discriminatn towards women…

- might lead to **Demonstration effect and bandwagon effect** on society [they'll start doing wrong/ not doing anthing]
- it will be **against my rational behaviour** as a civil servant and will create **crisis of conscience** for me.
- it'll be **against virtues of prudence and courage** of civil servant.
- may lead to **crises of conscience**
- a **wrong precedent** will be set and will become **barrier** for future development
- I cannot afford to make short term gains at cost of **long term harms**.
- It may **de-motivate** other employees and trigger **demonstration effect** in organization

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Strategy for CS

- **ID core + peripheral issues**. Adress peripheral issues **too** [mostly via long term strategies]
- Possible CoA ke de/merits likhne ke liye → see what's at stake for **each** stakeholders
- After giving possible CoA [say 3], choose anyone [not verbatim] but make it **a combo of difference**. CoA. Eg-
    - According to me **second** option is better **but not enough**. In addition I will take **following steps** to solve above situation
        - If court has given order that has some flaw as per you
            - I will ask for some more time from court of law. This way, **I won't defy order of court** and **won't show my reluctance to act.**
- Initially, start as if 'offender/ govt/ one at fault', might just **not** be aware of rules and if not a bad person by heart
    - Eg- I'll write to X and tell them about socio-economical loss due to this…. (make him aware - passive tense)
- **Bring SDGs** in all questns. See Mnemonics at end of this note.
- Most cases of violence [terrorism, naxal, Pak etc] mein perpetrators want fear and panic in people. One of your possible CoA will create panic. Write that, I won't choose that as **'people will lose faith in ce which is aim of Naxalites/ terrorists'**
- If you, as a CS sacrificed your life fighting mafias and situatn doesnt get better, it means you **should've** shown more EI. Don't sacrifice for **nothing.**
    - show temperance & self restraint. Every noble intention needs patience to make it successful
- In any natural calamity, **don't forget stakeholders as → animals [Right to life], people in Hospitals/ jails, children & elderly.** Mention steps for them specifically showing they are priority too.
- Your CoA in any situatn **must start with step that stops further deterioratn.** Eg- drug addict youth mein don't start with 1) youth rehab like stuff. Start by saying 1) my

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first step would be **to break nexus** between traffickers and suppliers so that more youth don't get caught in that.
- You can use readymade stuff. Eg- can use FDuty 2nd verbatim to show how you'd motivate yourself if falsely accused
- Demerit of any potential CoA → there is a chance that 'What I thought' might not happen even after taking CoA [Eg- terrorists might still kill hostages even after giving ransom!]
- Collect names of **2-3 NGOs working in diff fields** [women empower, child labour, edu, manual sca etc]. Write that I'll try to coordinate with NGOs like _____.

Perspective approach of analysis [Eg]

From perspective of common man, they have right to know X, and its consequences on their health/ life… If they are not informed about X, then their **right to self-determination** is violated. Also, it will **breach trust** which they have on Govt/ company, thus **destroying a common good**. They won't be able to make an **informed choice** in future. **Injustice** will be done due to **unfair distribution of benefits and burdens.**

What is checked

- Attitude
- Understanding of situation
- presence of mind to seek right solution
- **creativity** and **innovativeness** with regard to different life experiences
- **Optimism-** how one sees ray of hope in difficult situations,
- EI
- Depth of understanding and perception → Kitne dimensions se analyse karte ho
- Awareness of social issues and problems
- Decision making skills
- Ability to resolve ethical and moral dilemmas
- needs and rights of all concerned stakeholders.
- Leadership

A Good CS analysis must have

- **Flexibility** → explore and not prescribe actns
- **objectivity**
- **Relevant + Practical** approach
- **Controlled personal biases**
- **Holistic justficatn of stand** chosen
- a **definite stand** taken when needed. Not always middle path

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How to ID Ethical dilemmas. Ask yourself

- Could this decision be **damaging** to someone
- Does this decision involve a **choice between a good/bad**
- **test this on Ethical approaches**

Different ethical dilemmas

- Truth vs. loyalty to organisatn

Analyse based on perspectives of

- Stakeholders
- Schools of moral philosophy
- general dimensions- **SPECLIH**

See how final CoA is written after analysing all possible options

'As the deputy superintendent of police (DSP), I must not give into the unjust pressure of the villagers. I will have to stay neutral, and see the situation from a holistic perspective. Both the parties involved must be given an opportunity to present their views, before arriving at any conclusion. The accused will be punished as per the law. Further, adequate steps needs to be taken to prevent such incidences in future. I will take following steps in the situation: (a) File FIR against the unknown accused villagers. (b) Ensure proper cremation of the bodies of the deceased thieves. (c) Form a committee for fair investigation of the case. (d) Taking strict action against the accused, based on the report of the committee. For preventing such incidents from happening in the future, I will take following steps: (i) A Gram Sabha meeting can be called and the conflict can be resolved in an amicable manner. Awareness regarding law and repercussions of acts of violence can be created. (ii) Community policing can be started in which people from all strata of society will be involved. (iii) Focusing on attitude change of villagers through persuasion. (iv) Taking help of media, to highlight the case. It will act as a deterrent. Thus, action is required against the villagers as Justice by a mob is not the virtue of a vibrant democracy.'

Different Ethical approaches

UK VJCR M VPN (Utilitarian, Kant, Virtue, Justice, Common good, Rights, MKG, Mvenon, Profusional, ethics, Nat'l interest)

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Utilitarian approach

- Most good and **least harm**
- what kind of **precedent** is set
- See from **short** and **long term**

Rights approach

Rights are respected. See whose rights are violated and at what cost

1. Right to **self-determination** | 2. Right to liberty
2. Right to **due process of law** | 4. Right to freedom of movement
3. Right to freedom of thought, speech and expression
4. Right to freedom of religion | 7. Right to freedom of expression
5. Right to peaceful assembly | 9. Right to equality
6. Freedom to form associations or unions
7. Right to reside or settle in any part of the territory of India
8. Right to practice any profession or to carry on any occupation.
9. Right against exploitation | 14. Cultural and educational rights
10. Right to constitutional remedies | 16. Right to vote (but above 18 years)
11. Right to **education** | 18. Right to **privacy**
12. Right to **bodily integrity** | 20. Right to **health**
13. Right to food | 22. Right to government services
14. Right to marriage | 24. Right of Self-Defense
15. Right to Rest and Leisure | 26. Right to Adequate Living Standard
16. Right to Asylum in other Countries from Persecution | 28. Right to a Nationality and the Freedom to Change It
17. Freedom from Slavery | 30. Freedom from Torture and Degrading Treatment

Justice approach

- Are **risks & benefits** distributed **equitably**? IS one party enjoying at cost of other? Is result of your actn 'just' for all stakeholders?
- Is there an unequal distn of benefits & burdens.
- best serves **community as a whole**
- If we let a company cheat its customers, aren't we risking **'trust'/ 'social capital'**. W/o trust, wont psychological stress increase?

Common good approach

- An accessible and affordable public **health** care system, and effective system of **public safety and security**
- **Peace** among the nations of the world.
- A just **legal and political system**.
- uUnpolluted natural **environment**, and
- A flourishing **economic** system.
- **Trust** between people and government
- **Social capital**
- **Demographic dividend**

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Virtue approach

- what kind of person or organization we **aspire** to be
- Choose that option that makes you act **virtue** you want to embody
- Eg- for a company, Do they want to have a reputation like that? Does their actn is in consonance with their company's CoC

---

1. **Empathy** | 2. Compassion
2. **Dedication** | 4. Commitment
3. **Objectivity** | 6. Tolerance
4. **Impartiality** | 8. Fortitude
5. **Prudence** | 10. Temperance
6. **Justice** | 12. Charity
7. **Optimism** | 14. Generosity
8. **Altruism** | 16. Selflessness
9. **Fraternity** | 18. Loyalty
10. **Excellence** | 20. Honesty
11. **Creativity** | 22. Leadership
12. **Decency** | 24. Faithfulness
13. **Integrity** | 26. Openness
14. **Truthfulness** | 28. Efficiency
15. **Economy** | 30. Effectiveness

Gandhi's Talisman

- Will your actns be of any help to poorest person you know
- MKG → trusteeship, Sarvodaya thru Antyodaya, truth & N. Violece

Vivekananda's approach

Kant's Categorical Imperative

- treat humans as **ends**
- Never treat a person as a means to an end.
- Do we want to do that thing if 'everyone starts doing it'/ "if it was to be done to me'? Coz we will be at receiving end some day

Profession based approach

- what virtue your profession demands/ written in Company's CoC

National Interest approach

JS MILL's HARM PRINCIPLE

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- **John Stuart Mill,** in his treatise **"On Liberty,"** makes a powerful case to preclude governments from interfering in those areas of an individual's life which are private. Mill's theory, which came to be called "harm principle", suggests that **state can intrude into private life by way of sanction only if harm is caused to others or if conduct is 'other-affecting'**
    - Self regarding actions- affect individual himself
    - Other regarding actions- affect society)
- SC applied this in NSJ case @377- to decriminalise private consensual same sex 'intercourse' as **'BEYOND LEGITIMATE INTERESTS OF STATE'** → not harmng anybody

- Guru Nanak says whenever we prepare to do an act we must ask ourselves **"will I be able to place it in front of God. Will it withstand His scrutiny?"**

- Buddha – Middle path

Values of concern in

	Ethical Issues	Ethical Dilemmas
Public sector companies	• **Legality and ratnality** → within limit set by **laws** • **respons'ity and account'ity** • **commitment** to work	• **Integrity vs Personal and Social well-being**

	Ethical Issues	Ethical Dilemmas
[Public sector companies cont.]	• **excellence** → commit to highest std of quality • **Syncretic fusion** b/n X, organizatnal and social goals • **responsiveness & adaptability** • compassion • natnal interest • utilitarianism • justice • transparency • integrity • consistancy & fairness of tmt • benevolence, collegiality, courage, dedication, faithfulness, representativeness, truthfulness, selflessness,	• personal virtues vs **work culture** of organization. ○ I'm honest but colleagues corrupt • Truth (pub interest) vs Loyalty (organiz'al interest) ○ Blow whistle? • Justice (be objective, follow rules) vs Mercy • following **Rule of law** versus showing **empathy and compassion** ○ Old lady scheme need but ineligible • Discipline vs Empathy ○ If soldier raises genuine concern of shitty

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	loyalty, privacy, constitutionalism, tolerance, sincerity, optimism, openness, lawfulness	food • Personal vs public interest
Private sector companies	• Responsibility and accountability towards stakeholders → **customers, employees, managers, shareholders and society** • Transparency and disclosure → all stakeholders must know **all** • Integrity, loyalty and honesty: • Commitment: towards Organisatns goal & CoC • Statutory and **legal obedience** • Responsiveness: towards clients /stakeholders • Quality of products and services • Excellence: integrating efficiency, economy and effectiveness	• Integrity versus well-being • economy versus ecology • Professionalism versus well-being • ethics versus profitability • efficiency vs ethicality → earn more • Professionalism versus well-being → force ill worker to come to office
Ethics in NGOs	• Transparency • Integrity • Responsiveness • Equality • Dedication • Justice • Honesty • Accountability • empathy and compassion • Courage	
Applied Ethics	**Environmental ethics:** • Ecology versus economic development • Profitability versus sustainability • Humano-centrism versus bio-centrism **Bio-ethics:** • euthanasia, cloning, surrogacy, stem cell research etc.	

Publication ethics

- Photocopy case

Media ethics:

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- sting operations, paid news, media trials

Sports ethics

- ball tampering, betting

	Ethical Issues	Ethical Dilemmas
Individual Morality	• decision maker is a common man, **like you** ○ Eg- Women accident @Interview • Use → **Kant's categorical imperative**, lessons from life of **great leaders**, sayings from **religious** texts, stories from different mythologies etc	
Society wale cases		• Individual rights vs social interest • Equality vs equity • Criterion for fairness • Traditional values vs modern democratic values
International Ethics		• Nationalism vs internationalism • Duty towards citizens vs duty towards humanity • National interest vs universal values like peace and fraternity • Patriotism vs nationalism • Patriotism vs empathy towards all humans
Based on Attitude Change & EI	• CAB of Attitude pe write	

Approaches [UK VJCR M VPN]

- **Utilitarian, Kant's CI, Virtue, Justice, Common Goods, Rights, MKG, Vivekananda, Profession, National Interest**

Making Ethical decisions [GCCJ PR FW PPLS]

- **G**olden Rule, **C**onscience, **C**onsequences, **J**EEP (Joy, energy, enthu, peace), **P**arents, **R**eligion, **T**ruth, **F**ront Page, **W**hat if everybody did this?, **P**ractical, **P**recedent set, **L**egal, **S**takeholder
- *** combine this with Ethical approaches (schools of philosophy)

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General GS 4 [SCS2 TEQ SKAF]

- **S**C, **C**onstitution, **S**DGs, **2**nd ARC, **T**heories, **E**g, **Q**uotes, **S**hloka/ 7 Sins, **K**eyword, **A**cts, **F**lowcharts
- all conduct rules

Value Addition [MALSO EQRS]

- Movie, Anecdote, Law/ Constitution/ act, Stats, Opinion, Eg/ CA, Quote, Reports, Shloka/ 7 sins

A allues imovie tools

- * Dont write + & -ve values. Write **Virtues and Vices.**
    - freedom. " voluntaulness, free will

Lifecycle of any scheme/ initiative

i. Defining services and identifying beneficiaries – 'services' would include all expectation of citizens like timeliness, responsiveness etc. ii. Setting standards and norms for each service. Like time taken and fee required for registration. iii. Developing capability to meet the set standards – training, manpower etc. iv. Performing to achieve the standards. Removing middleman. v. Monitoring performance against the set standards. CCTVs can be used. The whole process can be computerized. Online anonymous grievance handling mechanism can be established. vi. Evaluating impact through an independent mechanism. Third party can be given responsibility in this regard. vii. Continuous improvement based on monitoring and evaluation. Citizens can be asked to fill feedback forms.

Small thing you can do

- Acquaint yourself with basic enviro laws & take actn when yoi see any violatn
- Eg of Common Goods

Why, as a civil servant you 'must' go further than what law says and act in your discretn for poor 'if need be'

- **Rules are for public** not vice versa

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- Bureaucratic Redtapism done more harm than good. in name of archaic rigid rules evn genuine public interest not served sometimes
- Erosion of public faith in system due to blind rule driven follow bureaucracy
- Any good public servant should not just understand well substance of laws but more importantly 'blind spots' of laws where he must act in his discretn
- But, such actns must be **OPEN, TRANSPARENT AND PUBLIC INTEREST DRIVEN INVOLVING/INFORMING SENIOR HIERARCHY EXPLICITLY.**
- Towards conclusion, write that I will request competent authorities to modify scheme provisions to institutionalize such kind of Exceptional cases and their redressal in a proper And objective manner

Robert Latimer - Wikiwand | Anishttham.

Dump- [Printed] Ethics 2021 notes

→ (so not to pray for anyone else, amiable? (not to be guilty for anyone else' mistake - scalpel))

✗ I must follow the message inscribed in our National emblem 'Satyamev Jayate' (truth alone triumphs)

✗ I must show courage & fortitude in discharging my duty & serving pub good. Also, as per KANT'S CI, one has to act as per one's moral duty in every circumstance.

Strategy for Case Studies (post evaluatn analysis)

← Questn milti di → see how many **parts** to be answered → see how you'll **divide the space allotted** ↓ ensure is each part answered is conclusion written

← Before writing every part, think for **20-30 secs** — core + peripheral issues → minor stakeholders

✗ cover peripheral issues too

← ✗ ✗ Don't write >2 lines for any pt. Use **keywords** to shorten.

← Only ans what is asked ← Address all stakeholders (implicit too) ← **INCORPORATE CONSCIOUSLY**

S	Supreme court		Gandhi 7 sins
C	Constit'n	SC S2	- Pol - Princ.
S	SDGs	TEQ	- Wealth - Work
2	2nd ARC	SKAF	- Worship - Sacrifice

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T	theories	- Science - humanity
E	Eg	- Know - Charac
Q	duty	- Commerce - Moral'y
S	Shloka (7 sins)	- Plea - Conscience
K	Keyword	
A	Act	
F	Flowcharts	
C	civil services cond' Rules '68	

✗ don't hesitate in shortening the subheads / write **WHY? HOW?** instead of full sentences (Rem: this is not a word contact)

Case Study Tips

Notebook: 2021 GS IV Created: 09-Dec-21 7:56 PM | Updated: 11-Dec-21 12:56 AM

1. a) b) c)
2. a) b) c)

Writing ethical issues/ dilemmas in part B or anything in part A

- if you have 9 points, put them under **3 subheads and write 3 in each**
    - Eg- if ethical issues asked, then ★(- EI in X ↙ - EI in Y ↙ - EI in Z ↙
- Use Maslow's hierarchy liberally. Say, the step is imp to take X to **self acualisation goals..** or something similar
- Quote base questions
    - If you know similar quote, write 'The given quote highlights what X had said a long time ago- _____'
        - Above quote highlights what centuries ago [**Plato**] had said, " educating mind without educating the heart in no education at all".
- **Before writing (possible) COA, write ★ my actions will be based on the motto of** 'some quote/ shloka.' ✗ ✗ Eg- in question of huge discretion, write- My motto is 'Power corrupts, absolute…..'
- If you evaluate your possible CoA in tabular form, you'll have enough space for
    - I'll additionally do ___
    - Justification ___
    - Conclude ___
- try to bring

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    - **Plato's cardinal virtues** — WCTJ
    - **Nolan committee** — SAMIOO
    - DPSP
    - FD
    - 7 sins
- write in EI- My virtues of ___ which is **fundamental value** of a civil servant **as per Nolan committee**
- Giving **examples** [relevant] after almost **every point** fetched marks
- If stakeholders not specifically asked
    - Make **a table** with columns as 1. stakeholders 2. concerned stakes/ issues
- **Sheelam Param Bhushanam**: Character is the highest virtue.
    - bring this in integrity wale questions
- Divide measures into **legal, institutional, administrative…**

Introducing cases

1. The case **demands...**
2. CA se link- **ASER report 2021** by NGO Pratham highlighted...
    1. If the case is based on some current eg- bring out that eg
    2. The given case is similar to ……
3. The given case presents a dilemma of X vs Y
4.
5.
6.
7.
8.

Write like below

Possible CoA 1….

Merit	**Demerit**

2…

Merit	**Demerit**

CoAction	**Justification**

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1. -- 2. -- 3. --

1. -- 2. -- 3. --

1. -- 2. -- 3. --

Ending cases

- Always end with **theory/ Quote**
-

Highlight ethical keywords

Above case presents a situation of **conflict of interest** and **ethical erosion** of the functioning of the government machinery due to **Nepotism**

BRING VARIETY IN APPROACHING ANSWERS

Part A

- Link with **current examples**. Add what's happening in sports/ movies….. That will easily put your ans apart

Part B

Use this, but max @2 cases

VISION IAS

| my vision | Sarve bhavantu sukhinah Sarve santu niramayah (for the happiness of all and for the health of all) |

[Diagram showing stakeholder hierarchy: society at large → local community → Government → NGO, with note: "by relative / stake"]

[Action Priority chart showing: raising the issue with seniors and ministers (Inhaw - Enquiry) → Police complaint against unjust order → whistleblowing (last resort)]

[Table format shown:]

Subject matter	Facts of the case	Values at stake	Stakeholders

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livelihood security	Cons lockdown	Compassion Sympathy	Homeless people migrants
Health	Cyclone Amphan	emotional integrity	Farmers
Sanitaion	Migrant coming back	Objectivity	Me
			Rescue force

compassion – Stirves hearts aside

[Ethical Mapping diagram with entries 1-4 and arrows]

Case study starter pack

Notebook: 2021 GS IV Created: 22-Nov-21 10:24 AM | Updated: 22-Nov-21 10:29 AM

- **Widen trust deficit.** As… Common good
- Address holistically taking interest of….
- **Compromise integrity…. Lifelong asset**
- Triple A of internet
- **x w/o y is a sin. Hence it is imperative** that…
    - Ww ws sh pp pc cm kc
- Social versus ethical wellbeing
- **LTH in pursuit of STG**
- Legacy of unethical practices... **Enhanced tolerance for AI**
- Catalyst for promotion of EB
- **Balance PP life without compromising on EP**
- **Blood for body**
- LoL and mores of society
- **Sm & RT bureaucracy**
- Sthitpragya
- **Justice done, seen to be**
- Domino and demonstration
- **Ethical exercise of power prevents p a d**
- Agent of **social reconstruction**
- CS- **universalistic orientation, liberal Outlook**
- Legal/moral duty
- VVehicles and fuel
- **Plato cardinal virtue**
- Veil of ignorance
- **Ensure desired ends with ethical means**
- Erosion of VS bi setting WP
- CN leadership
- Organisation= fruit of CE

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- Suspend officer to prevent Domino
- Make him realise talismaan
- **Integrity survey, hotline**
- **Integrity recognition certificate**
- Altruism is rational- kant
- Guilty in my own CoC
- Reinforcers prevailing patriarchy
- **Integrity is nn+ns**
- Must follow message of our **emblem**
- Gandhi Sin
- UK VJCR M Vpn
- SCS2 TEQ SKAF Conduct rules

Ethics Arguments

Notebook: GS IV Created: 11-12-2020 21:41 | Updated: 15-04-2021 00:42

Case study

- Suppose you are x. if doing something in your official capacity undermines your role in society, then write
    - As x, I am answerable to --- and my primary duty is ---
    - But as a member of society I am also expected to-----
    - I would be misusing my position as x if I …….
- Chosen one of the courses of action will have many merits and a few demerits. When in the conclusion you are writing that you will choose that, write a few sentences about how it might lead to merits as well
    - Eg- suppose in blowing the whistle in a company, in demerits, you've written about facing the wrath of your fellow coworkers. then in conclusion right how it might lead to admiration and respect from your colleagues as well for taking the stand

Fodder

- The situation tests my…..
- Pickup the peripheral details in the question (you are a **young** IAS officer)
    - Then while exploring one of the course of the actions, write that- as I am young, I might be unxperienced to handle such situations. Therefore I will not choose course of action A
- I will not choose x as it goes against the ethos of….
- for talking a politician out of doing illegal things,
    - tell him that the **active media** will eventually take cognizance of the case
    - I'll inform him about the **illegality** of the situation (make it look like he might not know that it's illegal :p)

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- As a civil servant, it is my duty to uphold the ethics of administration by providing an impartial service to all without succumbing to external pressures
- Elected and selected representatives are there so as to reinforce each other to do the right thing. (Civil servant vs politician)
- Why you shouldn't put petty criminals in jail
    - Their viewpoints may further get crystallized due to associations with **hardened criminals**
- Intro- a nuanced approach is needed to solve this…..
- It is unjust to prosecute honest officers for **Bonafide mistakes**
- Incorporate seven sins of Gandhiji
    - in a company where a very bright employee is a sexual Predator, write that it is wrong because -- commerce without morality is a sin.
- Incorporate acts and committee is in conclusion
    - Vishakha guidelines
    - Sexual harassment at workplace act 2013

Ethical dilemmas

- Compassion/ empathy vs objectivity
- Commercial property versus moral responsibility of….
- Corporate greed versus general good (ethical issue in vaccine distribution)
- Legally right but ethically wrong

What are the qualities required to be shown on in this case study

- Emotional intelligence
- Courage
- Commitment to work
- Ability to motivate others in adverse conditions
- **Objectivity and quick decision making ability**
- Leadership
- Management of limited resources
- Empathy
- Persuasion capacity
- **Tranquility and presence of mind**

- Corruption is a two way Street and for every bribe taker, there is a bribe giver.
- Collusive corruption= willingly bribe giving- supply side

- Ethics scrutinizes the human conduct based on **established standards, social norms, human values** etc
- **Herbert Simon's 'SWOT analysis'**
- encourage a culture of **transparency** and **deterrence** against wrongdoing.
- robust **whistle-blower protection policy**[

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- these make adhering to values diff
    - Increasing avenues for **conflict of interest.**
    - **Normalisation** of corruption in society
- unethical leadership within the company sets a **bad precedent** for all employees by **normalising breaking rules**
- write stuff like 'how doing X will normalise/ lead to a culture of Y'
- **GG intro**
    - Governance is the process through which various stakeholders articulate their interests, exercise their rights and a mediate the differences. Good governance refers to a responsive, accountable, sustainable and efficient governance.
- Participatory governance provides opportunities for citizens to take part in **decision making, implementation and monitoring of government activities**
    - dont stop at 'decision making'. Complete the entire value chain!
- for a honest and dynamic civil servant, there's no such posting as plum postings and punishment postings.

[End of document]

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